

PROFESSIONAL PRACTICE 1

ARCH 1331

# The Origin of the Architects Act + Regulations

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Peter Brew + Helen Duong | RMIT Architecture

architects act page as a document- hisotrical and current.

SPECIALISED  
DISCIPLINARY  
KNOWLEDGE

HIGHER  
LEARNING-  
UNIVERSITY

REGULATED

George Beaton:

MORAL CODE

"A profession is a **disciplined** group of individuals who adhere to **ethical standards** and hold themselves out as, and are accepted by the public as possessing **special knowledge**. It is inherent in the definition of a profession that a code of ethics **governs** the activities of each profession. Such codes require behaviour and practice beyond the personal moral obligations of an individual. They define and demand high standards of behaviour in respect to the services provided to the public and in dealing with **professional colleagues**. Further, these codes are **enforced by the profession** and are acknowledged and accepted by the community."

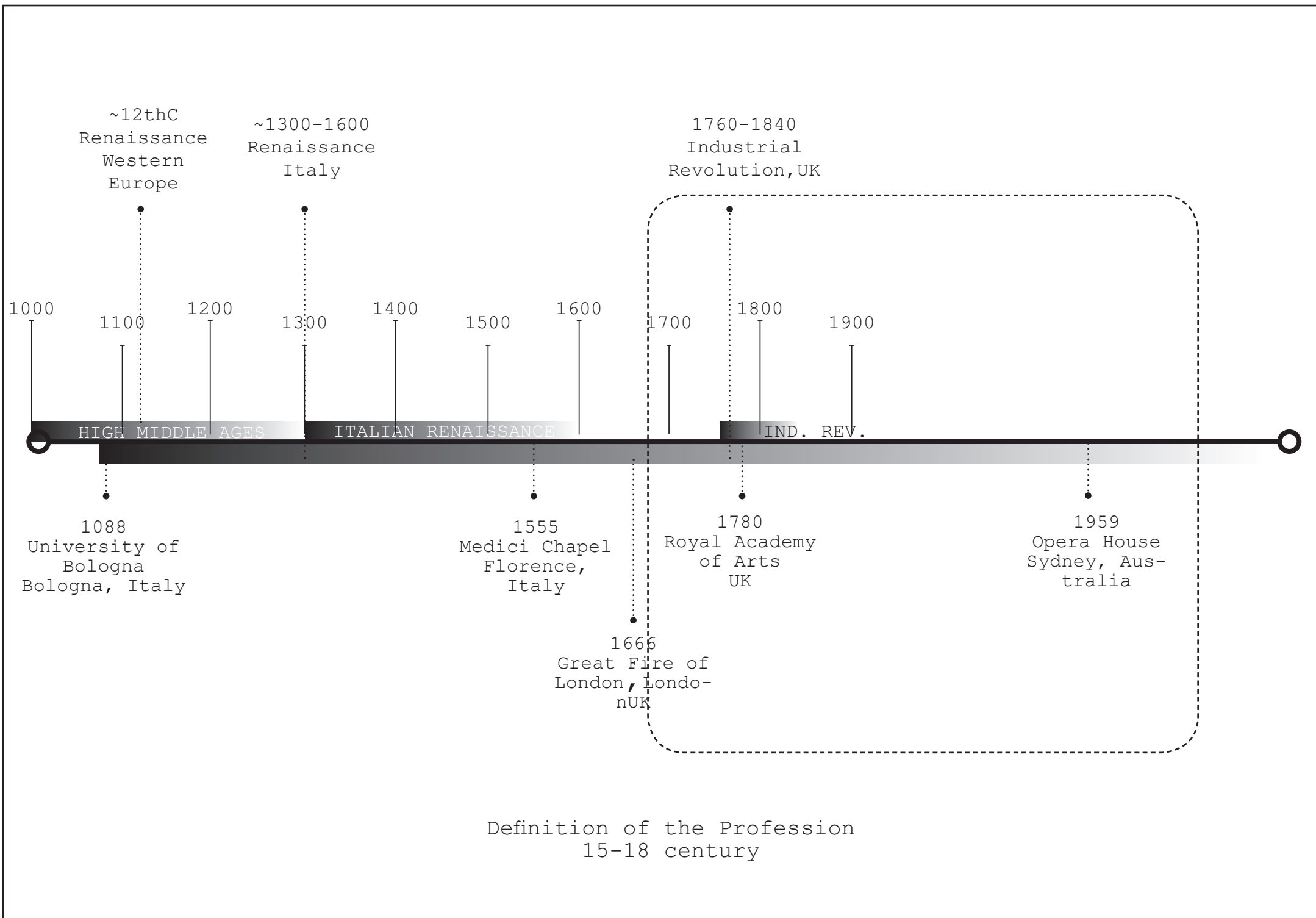
AUTONOMY

"What, then, if anything, distinguishes a profession from, say, a trade or craft? skills in a widely recognised body of learning derived from research, education and training at a high level, and who are prepared to apply this knowledge and exercise these skills **in the interest of others**."

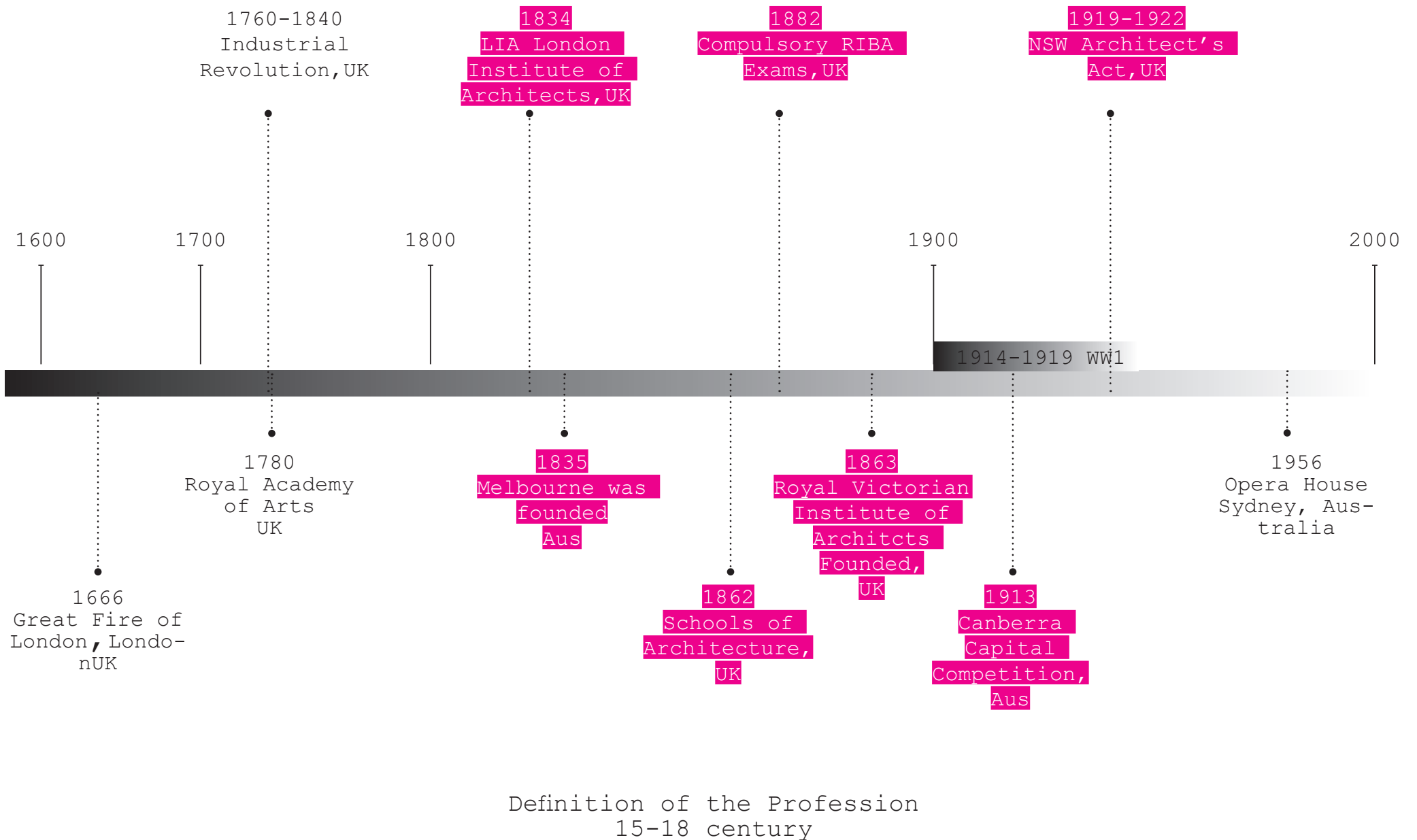
ALTRUISM

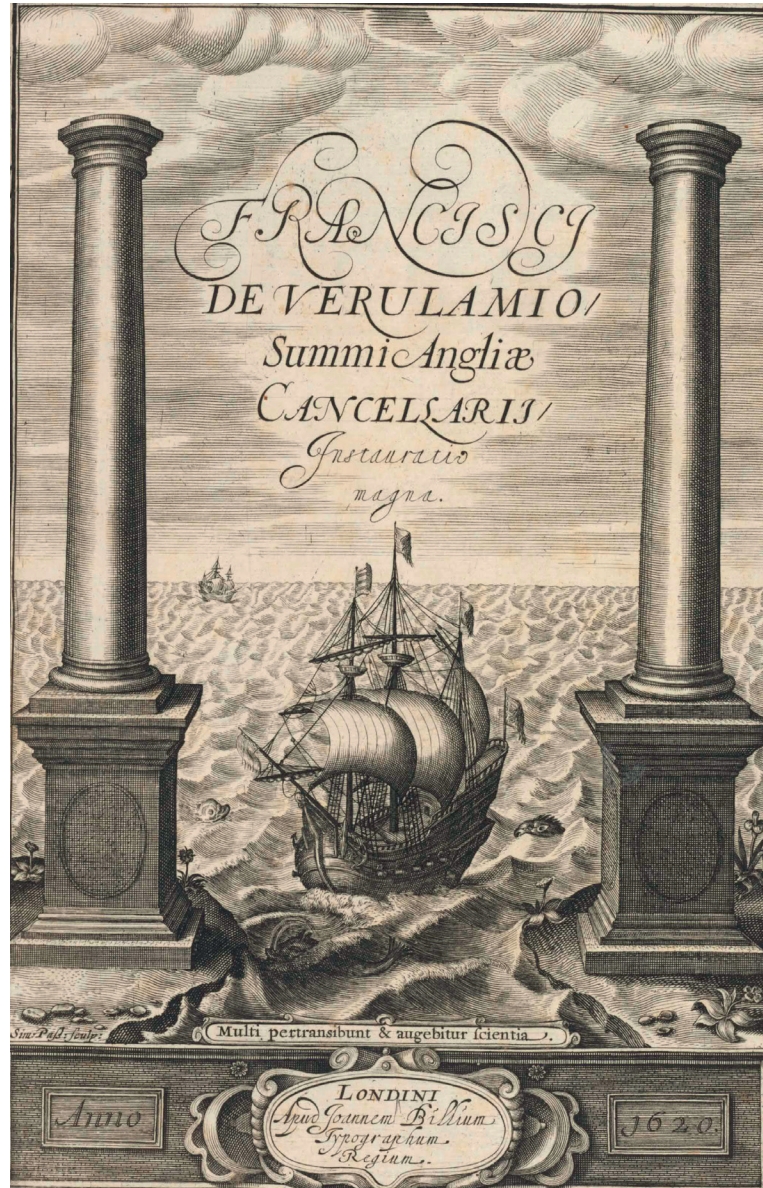
~ Why Professionalism is Still Relevant.  
U of Melbourne Legal Studies Research Paper No. 445,

INSTITUTE









Charter

Francis Bacon- English Philosophy

**JOURNAL**  
OF  
THE ROYAL INSTITUTE OF BRITISH ARCHITECTS

NOVEMBER 1895 - OCTOBER 1896



VOLUME III. THIRD SERIES

LONDON  
No. 9, CONDUIT STREET, HANOVER SQUARE, W.  
1896



For the use of the people, for the  
glory or ornament of the city.

**RIBA Motto**



Charter

RIBA Plaque- 1837

...forming an Institution for the general advancement of Civil Architecture, and for promoting and facilitating the acquirement of the knowledge of the various arts and sciences connected therewith; it being an art esteemed and encouraged in all enlightened nations, as tending greatly to promote the domestic convenience of citizens, and the public improvement and embellishment of towns and cities

(RIBA Charter 1837)

**RIBA CREST**



## ALTRUISM



Motto on Bronze  
Doors

## DISCIPLINARY KNOWLEDGE



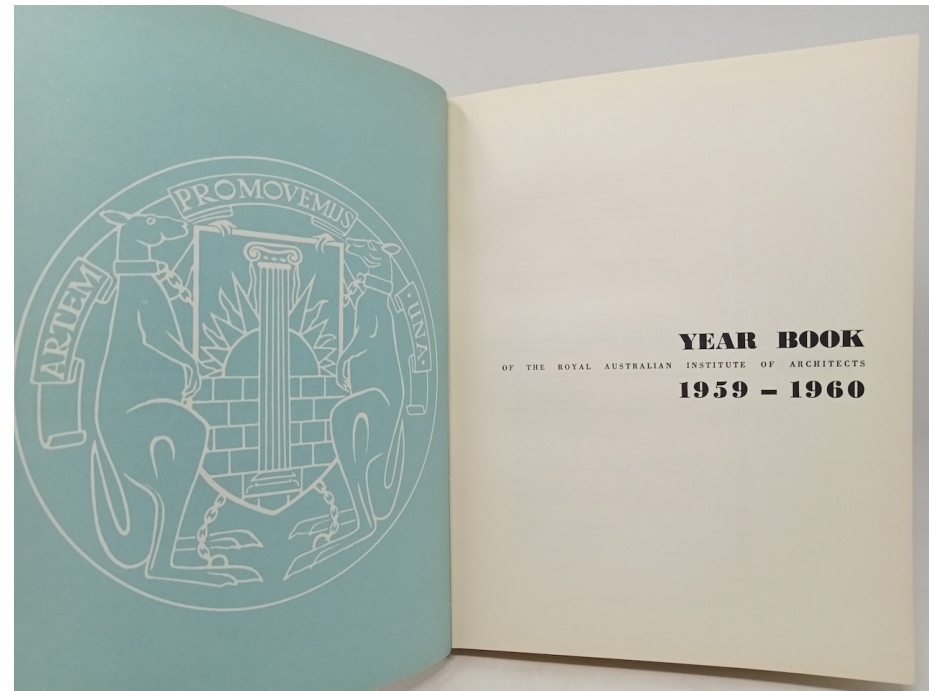
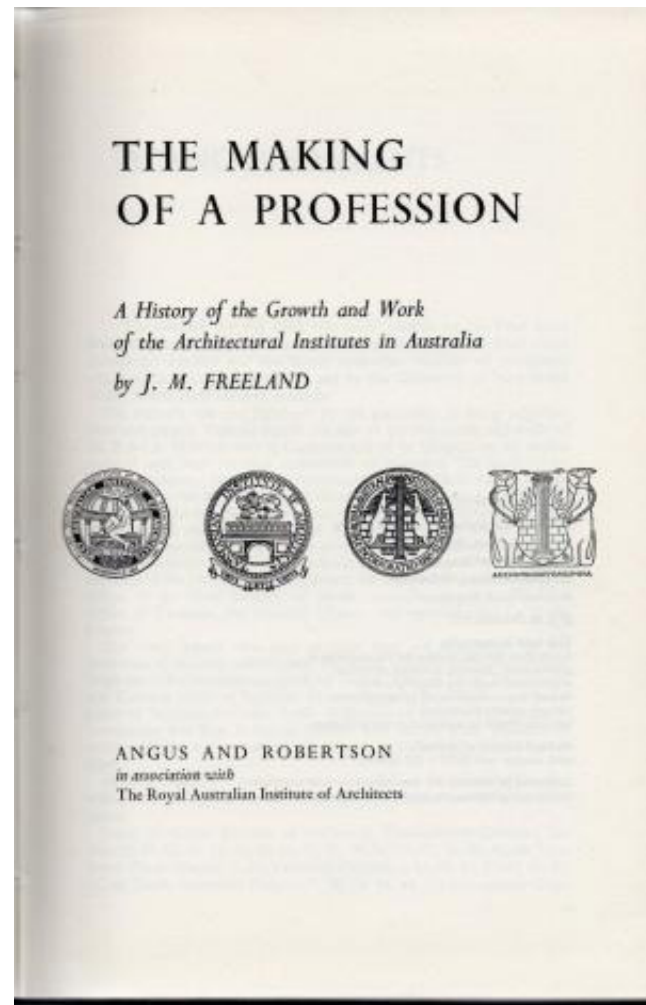
The Royal Academy,  
Burlington House,  
London.

## RESEARCH



RIBA Library

Royal Institue of British Architects RIBA



J. M. Freeland

No. 3207.  
An Act to provide for the Registration of Architects.  
[4th December, 1922.]  
BE it enacted by the King's Most Excellent Majesty by and with the advice and consent of the Legislative Council and the Legislative Assembly of Victoria in this present Parliament assembled and by the authority of the same as follows (that is to say) :—  
1. This Act may be cited as the *Architects Registration Act* 1922 and shall come into operation on a day to be fixed by proclamation of the Governor in Council published in the *Government Gazette*.  
2. In this Act unless inconsistent with the context or subject-matter—  
“Board” means the Architects Registration Board of Victoria constituted under this Act.  
“Minister” means the Commissioner of Public Works.  
“Prescribed” means prescribed by or under this Act.  
“Register” means the register of architects under this Act.  
“Registered architect” means any person whose name is for the time being registered in the register.  
“Registrar”

Short title and commencement.  
Interpretation  
“Board.”  
“Minister.”  
“Prescribed.”  
“Register.”  
“Registered architect.”

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Refd to Aust Heritage Commission v Mount Isa Mines Ltd (1995) 39 ALD 262  
Refd to Aust Heritage Commission v Mount Isa Mines Ltd (1995) 60 FCR 456  
Refd to Aust Heritage Commission v Mount Isa Mines Ltd (1997) 142 ALR 622  
Appl Auth Heritage Commission v Mount Isa Mines Ltd (1997) 71 ALR 441  
HIGH COURT  
[1925.  
[HIGH COURT OF AUSTRALIA.]  
THE ARCHITECTS REGISTRATION BOARD }  
OF VICTORIA . . . . . } APPELLANT;  
RESPONDENT,  
AND  
HUTCHISON . . . . . RESPONDENT.  
APPLICANT,  
ON APPEAL FROM THE SUPREME COURT OF VICTORIA.  
H. C. OF A. Architect—Registration—Powers of Board of Registration—Conclusiveness of finding of fact—Mandamus—Architects Registration Act 1922 (Vict.) (No. 3207), secs. 4, 6, 7, 10, 13.  
MELBOURNE, March 2, 31.  
Knox C.J., Isaacs, Rich and Starke JJ.  
By sec. 7 (1) of the Architects Registration Act 1922 (Vict.) it is provided that “Any of the following persons who applies in the prescribed form to be registered under this Act may on payment of the prescribed fee be so registered if the” Architects Registration Board constituted by the Act “is satisfied that such person has attained the age of twenty-one years and is of good character, namely: Any person who . . . (c) has for a period of at least one year before the first day of January one thousand nine hundred and twenty-three been bona fide engaged in Victoria in the practice of the profession of an architect and has made application for registration within six months after that date.”  
An application by the respondent for registration had been refused by the Board on the ground only that he had not for a period of at least one year before 1st January 1923 been bona fide engaged in Victoria in the practice of the profession of an architect.  
Held, that mandamus would not lie directing the Board to register the respondent:  
By Knox C.J. and Starke J., on the ground that the Board was entrusted with authority and jurisdiction to investigate and determine whether the

The Architects Act- Australia



## DISCIPLINARY KNOWLEDGE



 Australian  
Institute of  
Architects

# DENSITY DONE WELL

**EXHIBITION**  
Brickworks - 367 Collins Street, Melbourne  
9am-5pm, August 4th-7th

**CONVERSATION**  
Density Done Well - At Our Place  
Brickworks, 5:30pm, Wednesday August 6th

**BRICKWORKS** **LYSAGHT**  **OPEN HOUSE  
MELBOURNE**

[illegible]

# Australian Institute of Architects



## ALTRUISM

### Code of Professional Conduct

(current as at July 2017)

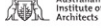


The Royal Australian Institute of Architects Limited

Code of Professional Conduct

Adopted by the Council on 31 January 2006

## ALTRUISM

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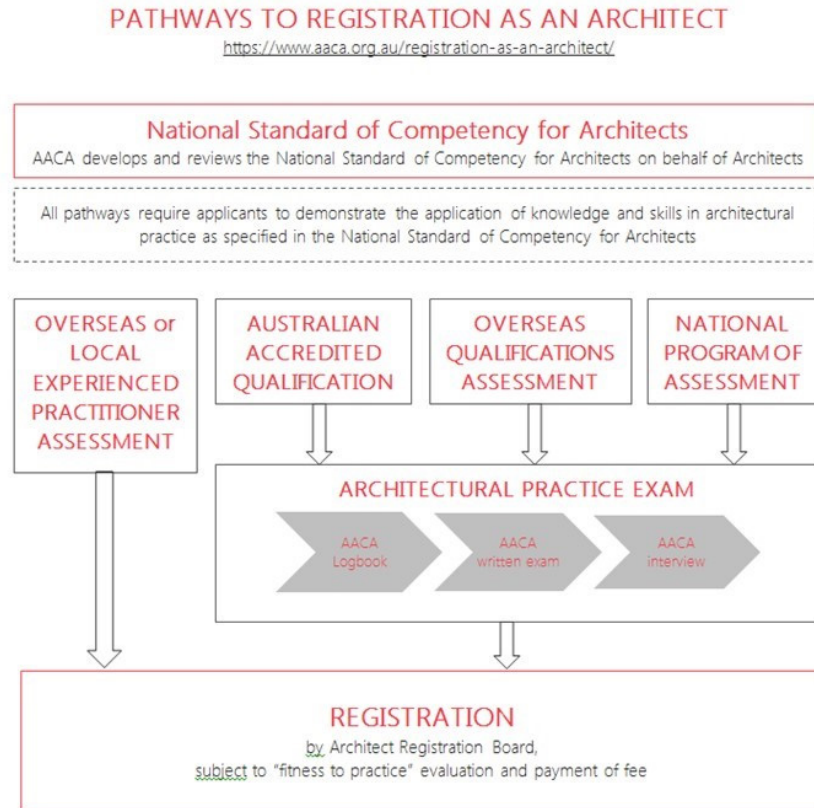
### POLICY SUBMISSIONS

Photo: Sébastien Bouché | Architecture | photo: Fernando Jester Urquiza

- [Opposition to the proposed absorption of the Architects Registration Board of Victoria \(ARBV\) into the Business Licensing Authority](#)
- [Architects Registration Board of Victoria Regulations – Ministerial Submission | May 2026](#)
- [Vic Parliamentary Inquiry into voting centre accessibility 2026](#)
- [Sunset Review of Architects Regulations | Response to the Regulatory Impact Statement 2026](#)
- [Proposed Mid-Rise Standards \(Clause 57\) consultation response October 2025](#)
- [Building Electrification Regulatory Impact Statement \(RIS\) Submission March 2025](#)
- [Public Housing Towers Inquiry Submission March 2025](#)
- [Regional Housing Inquiry Submission March 2025](#)
- [Legislative Council Environment and Planning Committee – Inquiry into Climate Resilience – Transcript – Nov 2024](#)
- [Plan for Victoria: Joint submission from an alliance of built environment institutes 2024](#)
- [Plan for Victoria: Australian Institute of Architects Submission 2024](#)
- [Density Done Well – Design Led Housing Solutions May 2024](#)
- [Australian Institute of Architects and Association of Consulting Architects joint submission to the review of the Domestic Building Contracts Act 1995 | Feb 2024](#)
- [Australian Institute of Architects Submission to Dept of Transport and Planning – Modernising Bicycle and Car Parking Requirements discussion paper October 2023 | Dec 2023](#)
- [Australian Institute of Architects Submission to Victorian Parliamentary Inquiry into Rental Affordability | July 2023](#)
- [Australian Institute of Architects Victorian Chapter 2023–24 Pre-budget Submission | April 2023](#)
- [Australian Institute of Architects letter to Victorian Planning Minister on the Building and Planning Legislation Amendment Bill | January 2023](#)
- [Australian Institute of Architects letter to Victorian Shadow Minister for Planning on the Building and Planning Legislation Amendment Bill | January 2023](#)
- [Letter to The Hon Lizzie Blandthorn MP | Higher energy standards in the 2022 National Construction Code | October 2022](#)
- [Letter to The Hon Lily D'Ambrosio MP | Higher energy standards in the 2022 National Construction Code | October 2022](#)
- [Inst\\_Cover\\_Ltr\\_to\\_Victorian\\_Assist\\_Treasurer\\_Minister\\_Reg\\_Reform\\_Danny\\_Pearson\\_Budget\\_Submission | March 2022](#)
- [Inst\\_Cover\\_Ltr\\_to\\_Victorian\\_Treasurer and Minister\\_EcoDev\\_Tim\\_Pallas\\_Budget\\_Submission | March 2022](#)
- [Inst\\_Cover\\_Ltr\\_to\\_Victorian\\_Planning\\_Minister\\_Wynne\\_Budget\\_Submission | March 2022](#)
- [Priorities for 2022 Victorian State Budget | March 2022](#)
- [Transcript of Institute representatives at hearing of the Victorian Parliamentary Inquiry into Apartment Design Standards February 16th 2022](#)
- [Presentation given at hearing of the Victorian Parliamentary Inquiry into Apartment Design Standards | Feb 2022](#)
- [Submission to DELWP consultation – Improving the Operation of ResCode | Dec 2021](#)
- [Submission to Victorian Parliament Inquiry on Apartment Design Standards | Nov 2021](#)
- [Submission on Melbourne's Future Planning Framework Land Use Framework Plans | Oct 2021](#)
- [Victoria's Climate Change Adaptation Action Plan – Built Environment Institute Response | Aug 2021](#)

# Australian Institute of Architects

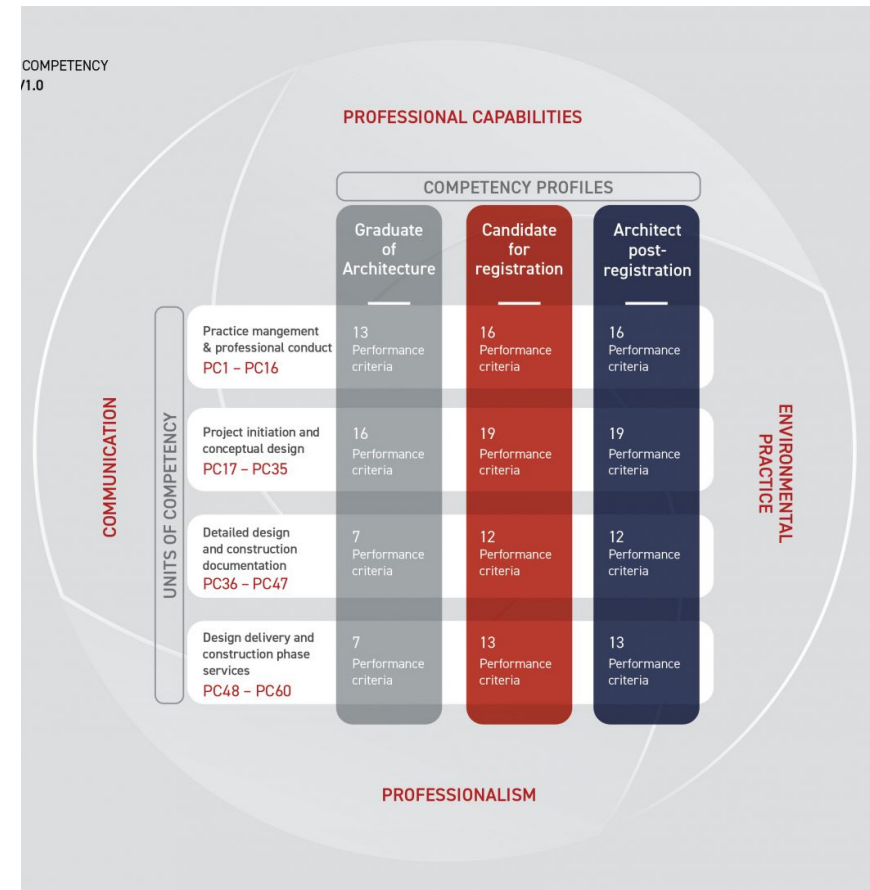
## REGULATION



National coordination between  
 registration boards

## DISCIPLINARY KNOWLEDGE

## HIGHER LEARNING



2021 National Standard of Competency  
 for Architects

Architects Accreditation Council of Australia,

REGULATION

AUTONOMY

Statutory regulation rather than  
membership

Architects Registration Board of Victoria

# DISCIPLINARY KNOWLEDGE

ARCHITEAM



FAQ   Membership & Insurance   ArchiTeam Member Benefits   **Business Documents**   CPD Online   Peer Support & Networking   Awards

Advocacy & Research   Why Use An Architect   ArchiTeam Membership & Insurance Renewals FAQ

## Business Documents

Empower Your Practice with Essential Tools and Agreements

ArchiTeam offers a range of meticulously crafted business documents exclusively for members, designed to streamline practice management, ensure compliance, and enhance professional operations.

Access to these documents are for **MEMBERS ONLY**.

If you'd like a copy of these documents, please consider becoming an ArchiTeam member [HERE](#).

Here's what's available:

### Client Architect Agreement Pack

Client Architect Agreement (Ver5) for ALL ArchiTeam members, along with FAQ, Disclaimers, and CAD Disclaimer document.

Since 2019, the ArchiTeam Client Architect Agreement (CAA) has been provided as a free resource for all members. In recent years, this has evolved into the CAA Pack, offering a broader suite of supporting documents to assist members in practice.

The CAA Pack has recently been reviewed and updated by the Board, with guidance from lawyers at

### Work Health & Safety (WHS) Kit

The ArchiTeam Work Health & Safety (WHS) Kit (2021) has been reviewed and redone to provide members a tool to use within your practices and to provide the supplementary information needed to submit for preferred suppliers lists and tender/RFI submissions to councils and government.

The WHS Kit can also be used to express a practices' health and safety expectations and assists the practice to achieve better health & safety results

► **Purpose:** A comprehensive tool for practice

### Employment Agreement

Finding the right employment agreement or contractor contract for your small architectural practice can be complex. To simplify the process, we offer professionally crafted contract templates designed specifically for the a small architectural practice. Each template ensures compliance with current workplace legislation and provides clarity between you and your team.

**Available Templates:**

- ArchiTeam Employment Agreement - Casual
- ArchiTeam Employment Agreement - Permanent Employee

Small-practice collective support

# ArchiTeam



## Sign the Declaration

By signing this pledge, we will seek to:

1. Raise awareness of the climate and biodiversity emergencies and the urgent need for action amongst our clients and supply chains.
2. Advocate for faster change in our industry towards regenerative design practices and a higher Governmental funding priority to support this.
3. Establish climate and biodiversity mitigation principles as the key measure of our industry's success: demonstrated through awards, prizes and listings.
4. Share knowledge and research to that end on an open source basis.
5. Evaluate all new projects against the aspiration to contribute positively to mitigating climate breakdown, and encourage our clients to adopt this approach.
6. Upgrade existing buildings for extended use as a more carbon efficient alternative to demolition and new build whenever there is a viable choice.
7. Include life cycle costing, whole life carbon modelling and post occupancy evaluation as part of our basic scope of work, to reduce both embodied and operational resource use.
8. Adopt more regenerative design principles in our studios, with the aim of designing architecture and urbanism that goes beyond the standard of net zero carbon in use.
9. Collaborate with engineers, contractors and clients to further reduce construction waste.
10. Accelerate the shift to low embodied carbon materials in all our work. Minimise wasteful use of resources in architecture and urban planning, both in quantum and in detail.

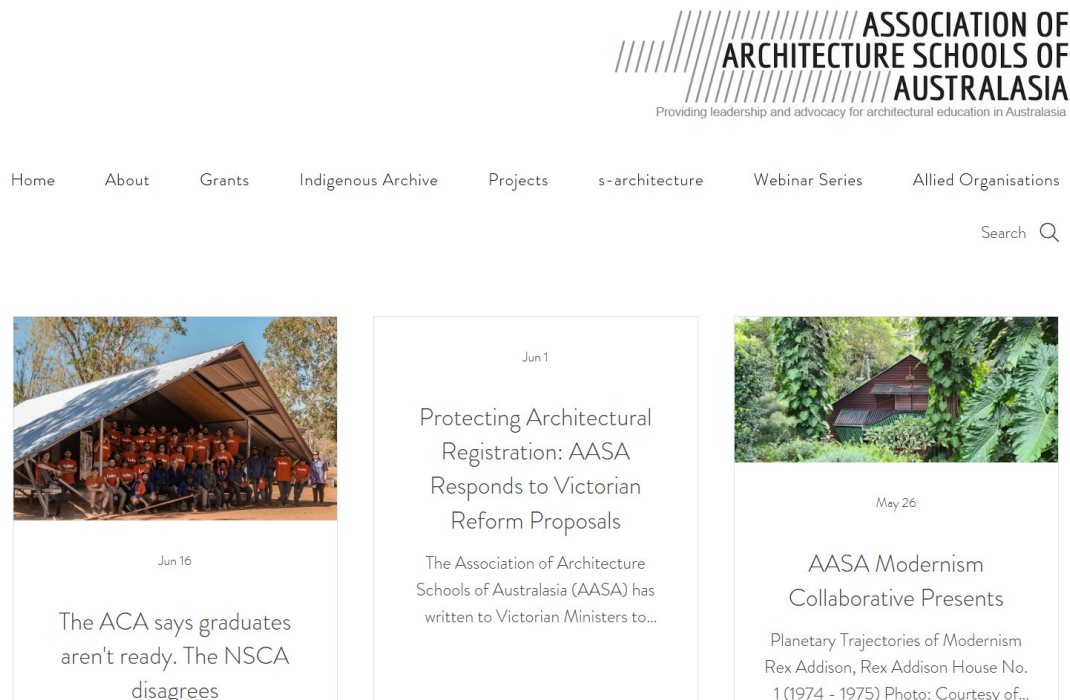
In Australia, we as architects are aware that Aboriginal and Torres Strait Islander peoples have long espoused the cultural, social, economic and environmental benefits embedded in the holistic relationship of Caring for Country.

Voluntary ethical mobilisation

# Architects Declare Australia



## DISCIPLINARY KNOWLEDGE

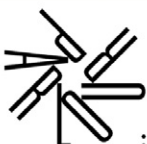


Website



Research Publications

# Association of Architecture Schools of Australasia



: gender, equity, architecture.

search

READ ▾ WATCH / LISTEN ▾ ACT ▾ EXPLORE ▾ DATA KIOSK ▾ MARION'S LIST ▾ PARLOUR COLLECTIVE ▾

action on equity.  collective}

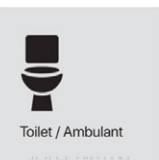
editorial »



**Letter to my younger self**

If not you, then who?

MFI KAMAI



**Toilet / Ambulant**

All-gender bathrooms - an NGO update



**Congratulations Simona Castriem**

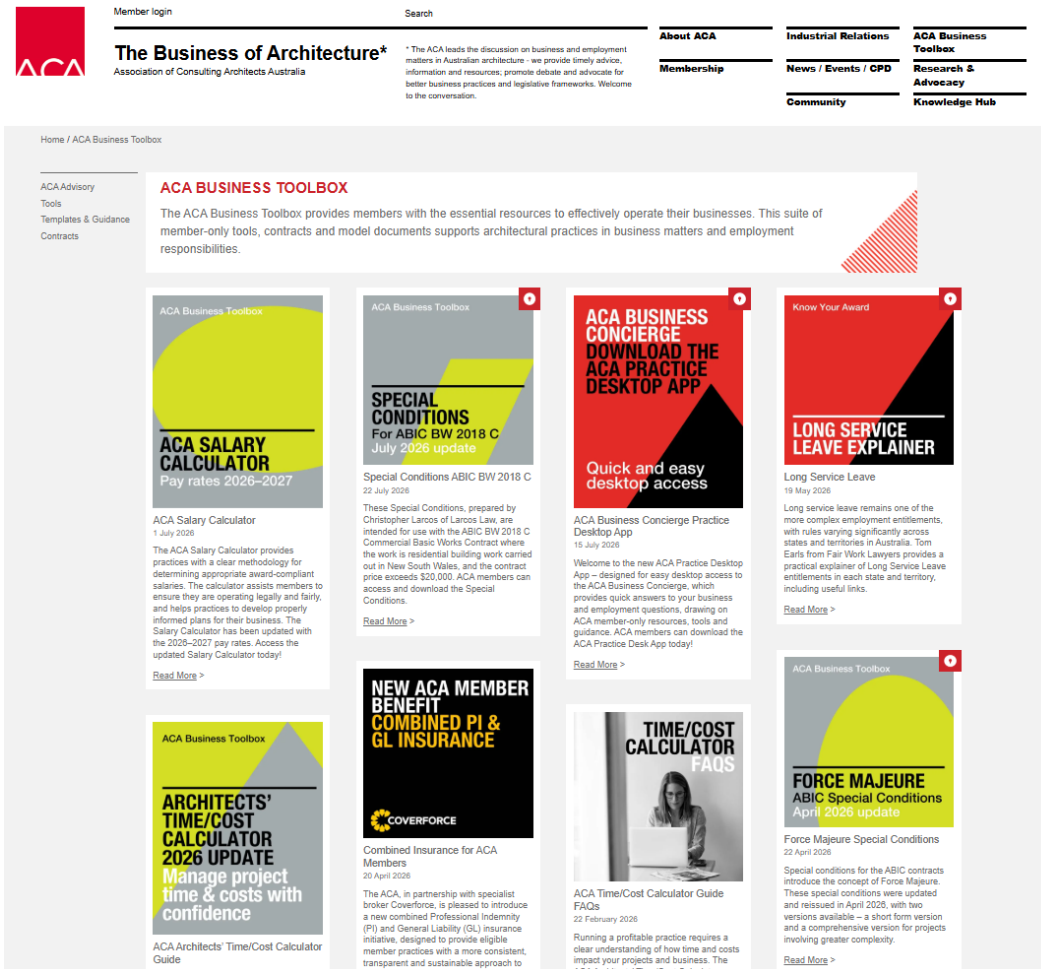


**Wage Theft: an explainer**

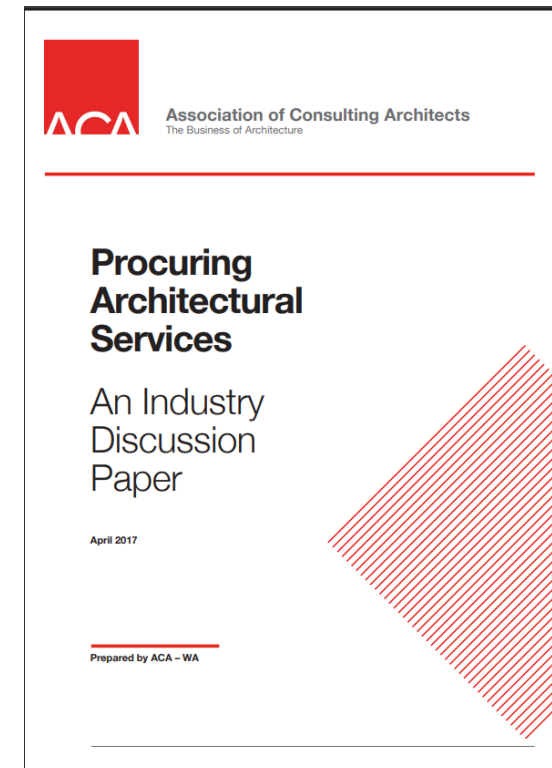
AN EXPLAINER

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <h2>Parlour Guides to Equitable Practice</h2> <p>Helping architecture to become a more equitable and flexible profession; one that offers opportunity for all and is well positioned to meet contemporary challenges.</p> <p>→</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | <h3>01. Pay equity:</h3> <p><u>Equal pay for equal work</u> has been enshrined in Australian law since 1969, despite this – and despite the best intentions of many – gender-based pay gaps still occur in architecture, as in most industries.</p> <p>This guide offers simple suggestions to assist practices in evaluating, establishing and maintaining pay equity, and to help employees seeking to achieve gender pay equity. It also makes suggestions as to how the profession as a whole can assist in addressing the issue.</p> <p>→</p>                                                                                                                                                                                                                                                                                         | <h3>02. Long-hours culture:</h3> <p><u>Long working hours</u> are a huge issue in architecture. A culture of long hours is damaging to individual architects, to businesses, to the architect's professional standing and to the viability of the profession. It has major negative effects on those with commitments outside the workplace, and impacts particularly severely on women's careers. Although there are surprisingly few resources available and the issue can seem inevitable and intractable, there are also good examples of practices that don't fall into this pattern.</p> <p>This guide challenges long-hours cultures in architecture. It examines the complex factors behind it and offers suggestions about how to manage workload and workplace culture for the benefit of all.</p> <p>→</p> | <h3>03. Part-time work:</h3> <p><u>Meaningful part-time work</u> in architecture is essential to work/life equity. It allows employees to balance life and work demands – to be challenged and fulfilled at work, while also devoting adequate time and energy to family life or external activities. It also ensures practices retain key talent, experience and professional knowledge.</p> <p>If the industry is to achieve true gender equity, serious part-time work needs to be a more available and acceptable career option for everyone.</p> <p>This guide outlines the benefits to practices and employees and offers strategies for creating and promoting meaningful part-time work.</p> <p>→</p>        |
| <h3>04. Flexibility:</h3> <p><u>Flexible work practices</u> are becoming increasingly common in architecture. Some architects already enjoy the benefits of flexible schedules, working from home. In architecture the challenges are less to encourage the adoption of flexible work patterns, and more to overcome their often-unspoken career costs. For example, returning to part-time work after parental leave is often considered a career killer, and this inevitably impacts disproportionately on women.</p> <p>This guide looks at some of the benefits of working flexibly in architecture and identifies strategies to help these arrangements run smoothly.</p> <p>→</p>                                               | <h3>05. Recruitment:</h3> <p><u>Equitable recruitment</u> is an important place to start building an equitable practice and profession. Recruitment processes in architectural practices range from very casual to highly managed. Whatever the process used, recruitment needs to be done well to ensure that the practice attracts and keeps the best people, and that all applicants have equal opportunity. Satisfied employees, high levels of performance and competitive strength are just some of the rewards for practices that handle recruitment well.</p> <p>This guide provides advice on fair and equitable recruitment strategies and processes for both employers and employees. It includes material for those starting out in their careers and those at more senior levels.</p> <p>→</p>                                | <h3>06. Career progression:</h3> <p><u>Every career is different.</u> It's often more than a single, rising trajectory – it can involve pauses, shifts in intensity and different types of work over a lifetime. There is more than one career model and different models suit different people and life stages. Research indicates that women are more likely to have complex 'non-standard' careers and to experience delayed career progression.</p> <p>This guide looks at how careers might be considered and navigated. It offers suggestions for supporting women's professional development and career progression. This includes supporting women with 'traditional' architectural careers in private practice, and those with more complex 'flexible' careers.</p> <p>→</p>                                 | <h3>07. Negotiation:</h3> <p><u>Good negotiation skills</u> play a big role in the development of individual careers, in the strength of successful practices and in the continuing viability of the profession as architecture renegotiates its cultural, social and political role. Research in other fields consistently demonstrates that gender can impact negotiation styles, outcomes and even the willingness to negotiate in the first place.</p> <p>This guide outlines the importance of negotiation skills in architecture. It offers advice to employees and employers about negotiating in ways that provide a fairer playing field for women and men, and are beneficial to all parties.</p> <p>→</p> |
| <h3>08. Career break:</h3> <p><u>Career breaks are common</u> in architecture and many people take one or more breaks over the course of their career. The reasons are diverse and include caring for children or other family members, further study, travel, an occupational side step, or an enforced break due to redundancy or illness. Some of these are seen as career advancing, while others are perceived 'career killers'. Whatever the reason for the break, it needs to be carefully managed.</p> <p>This guide assists employees and practices to collaboratively plan for and manage career breaks, particularly parental leave, and to support a successful return to work life, particularly for women.</p> <p>→</p> | <h3>09. Leadership:</h3> <p><u>We need the best people</u> to lead the profession (women and men) at both practice and industry levels. Women are significantly underrepresented at the senior levels of architectural practices and in leadership roles in the profession. In substantial research shows that companies and organisations with diverse leadership groups consistently outperform those without. The ethical and business cases for gender-diverse leadership are abundantly clear – architecture needs to catch up.</p> <p>This guide addresses the obstacles women may face in attaining seniority, offers women tips on positioning themselves for leadership roles, provides guidance on promoting and supporting women, and outlines the role leaders in the profession can play in facilitating change.</p> <p>→</p> | <h3>10. Mentoring:</h3> <p><u>Mentoring is a critical tool</u> for retaining women in architecture, developing their careers and fulfilling work, reversing the flow after career breaks. Mentoring relationships can be useful and inspirational. They deliver valuable learning experiences and diverse support and advice to the mentees. They also provide value for the mentor who develops professional skills and gains insight into the concerns and experiences of younger architects.</p> <p>This guide outlines the benefits of mentoring programs and relationships, and includes strategies for building their effectiveness.</p> <p>→</p>                                                                                                                                                               | <h3>11. Registration:</h3> <p><u>Only 21% of registered architects</u> are women. This is despite women having comprised approximately 40% of architecture graduates in Australia for three decades.</p> <p>Encouraging, supporting and mentoring those women who choose to register is a symbolic and practical contribution to gender equity in the profession.</p> <p>This guide outlines the obstacles that women may face, and strategies to manage them, and provides advice about supporting women who wish to register as architects.</p> <p>→</p>                                                                                                                                                           |

Parlour

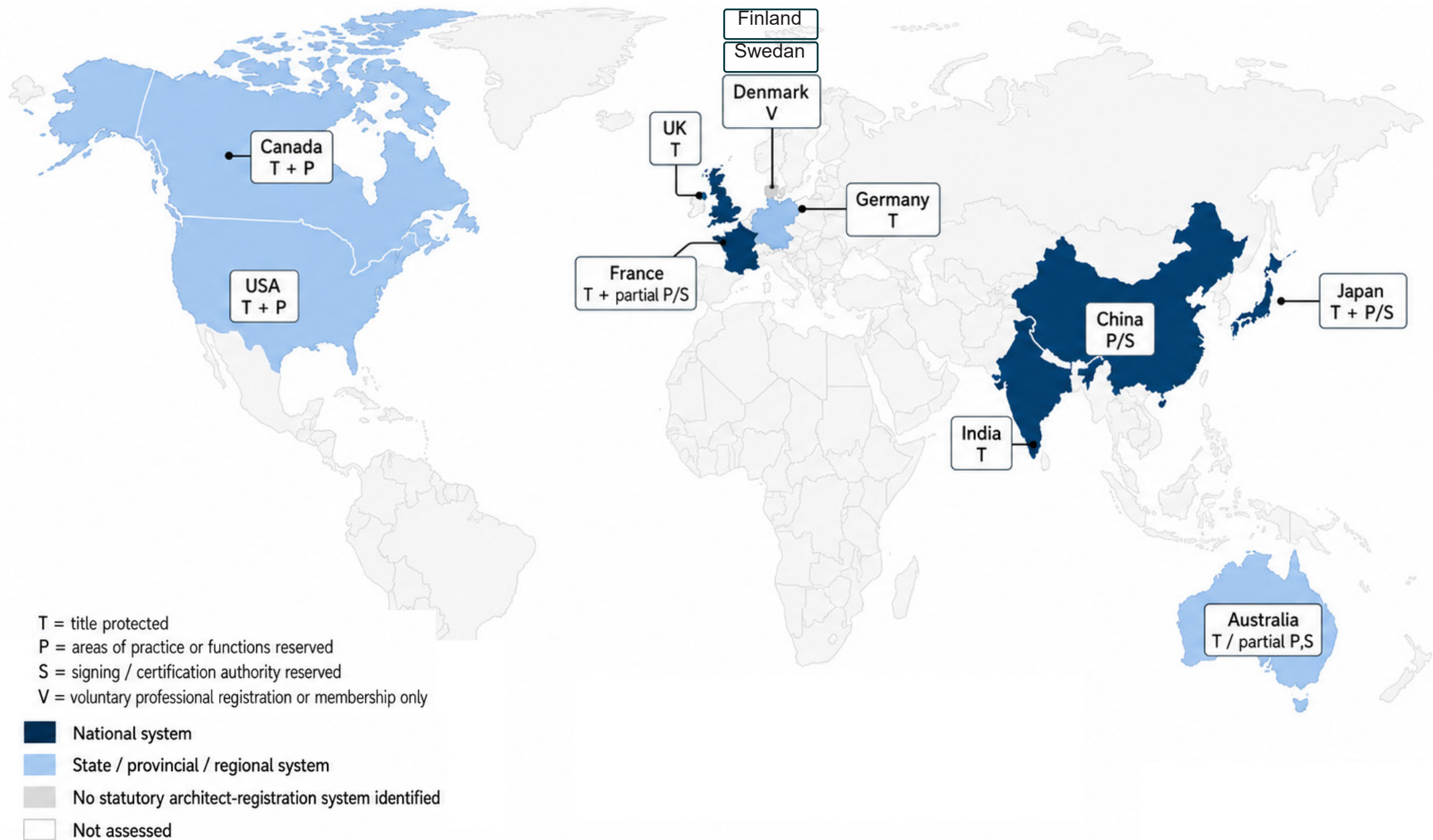


Website + People



Documents

Australian Consulting Architects



## Regulation of the Architectural Profession

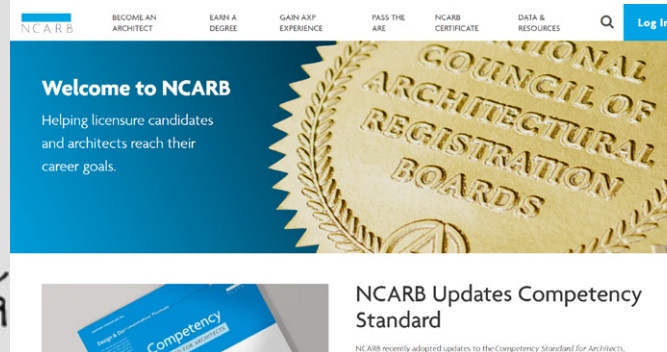


## REGULATION



board seal or  
licence

## REGULATION



National Council of  
Architectural Registration  
Boards

## DISCIPLINARY KNOWLEDGE



American Institute  
of Architects  
headquarters

Washington DC



सत्यमेव जयते

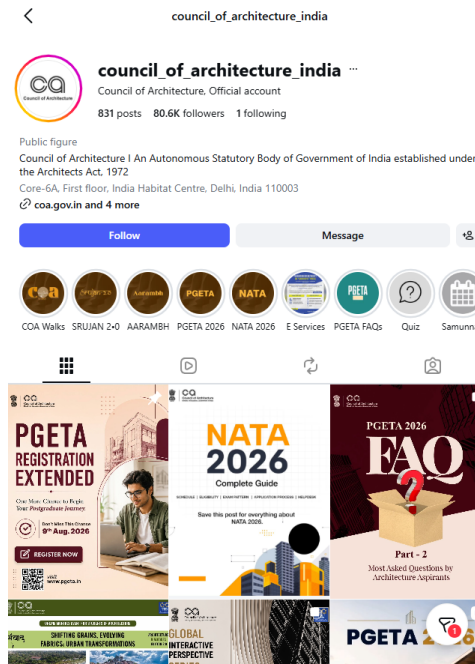
## The Architects Act, 1972

(ACT NO. 20 OF 1972)

(As on the 3rd December, 2025)

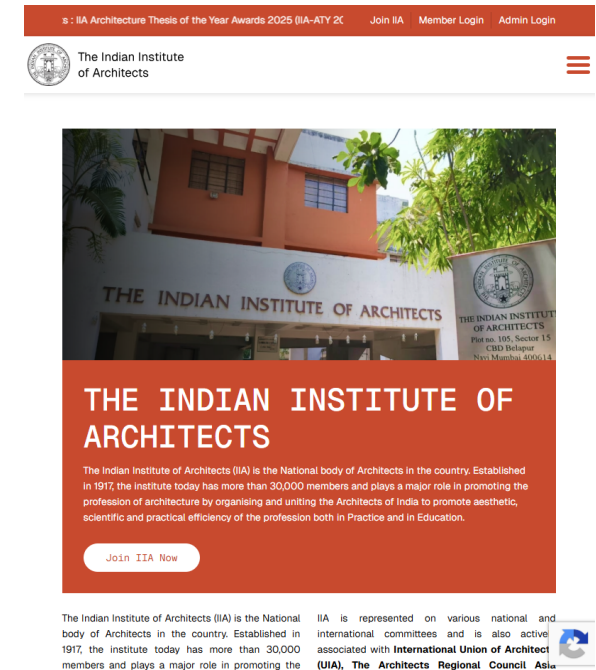
India's Architects  
Act 1972.

## REGULATION



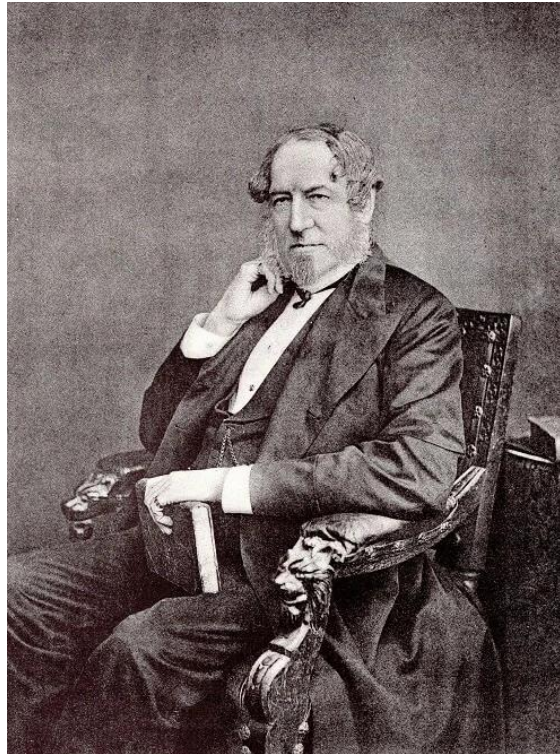
Council of Architecture  
statutory body  
registration  
architectural education  
standards.

## DISCIPLINARY KNOWLEDGE



The Indian Institute  
of Architects





1836  
Royal Institute of British Architects first Silver Medal  
George Godwin  
[Royalpark.org](http://Royalpark.org)

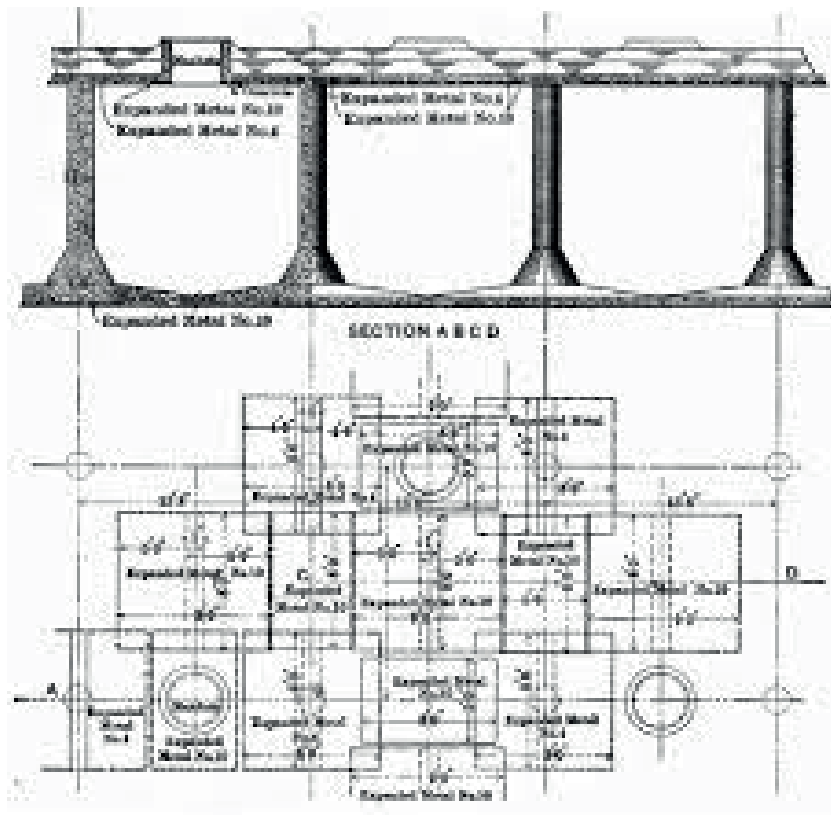
# THE MAKING OF A PROFESSION

*A History of the Growth and Work  
of the Architectural Institutes in Australia*  
by J. M. FREELAND

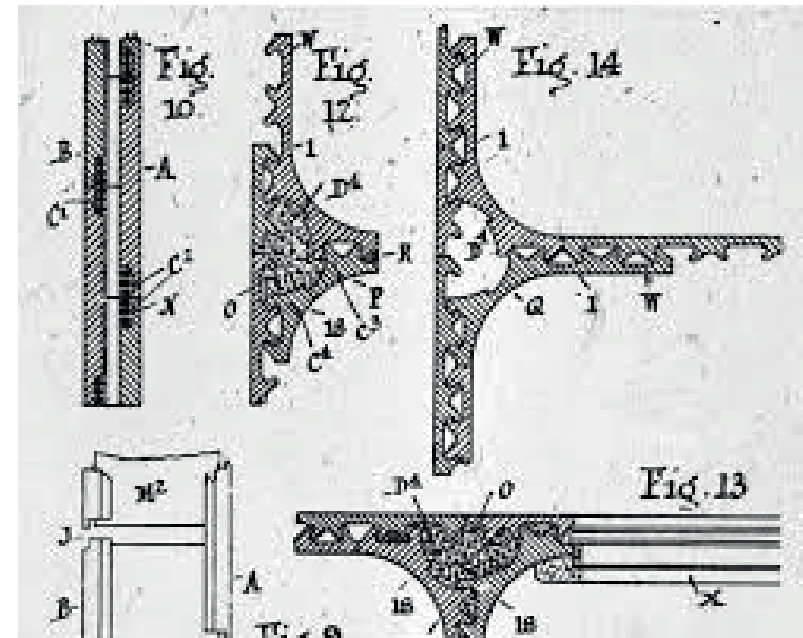
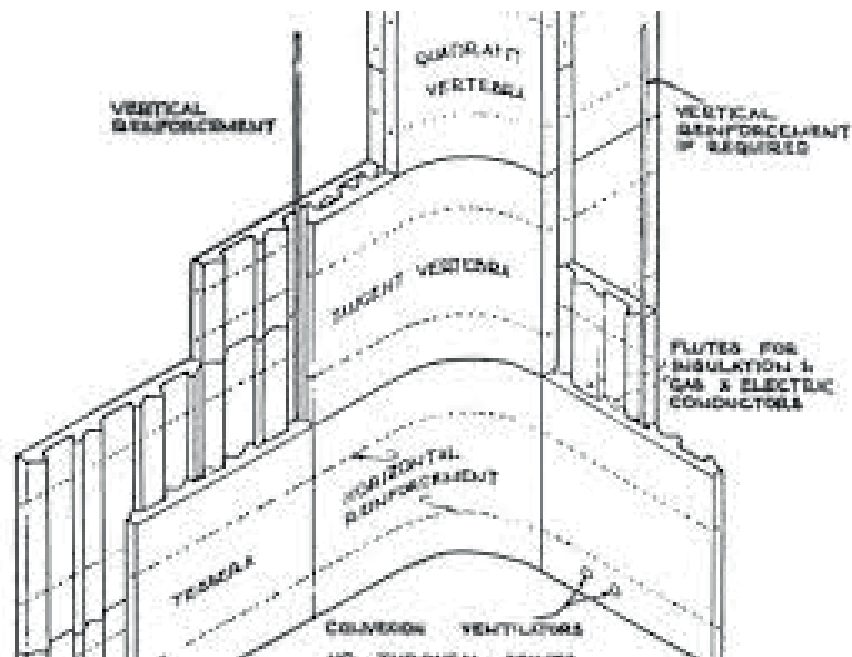


ANGUS AND ROBERTSON  
*in association with*  
The Royal Australian Institute of Architects

J. M. Freeland

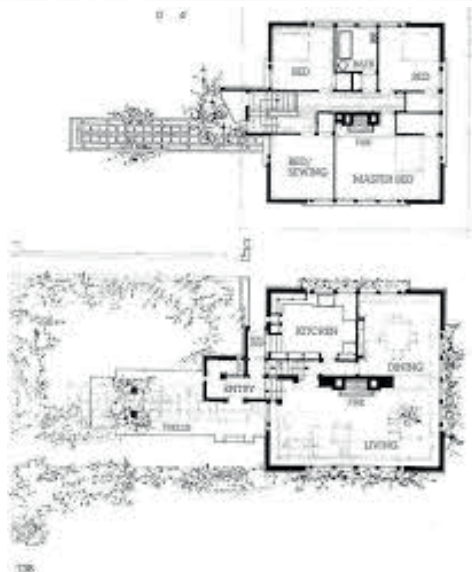
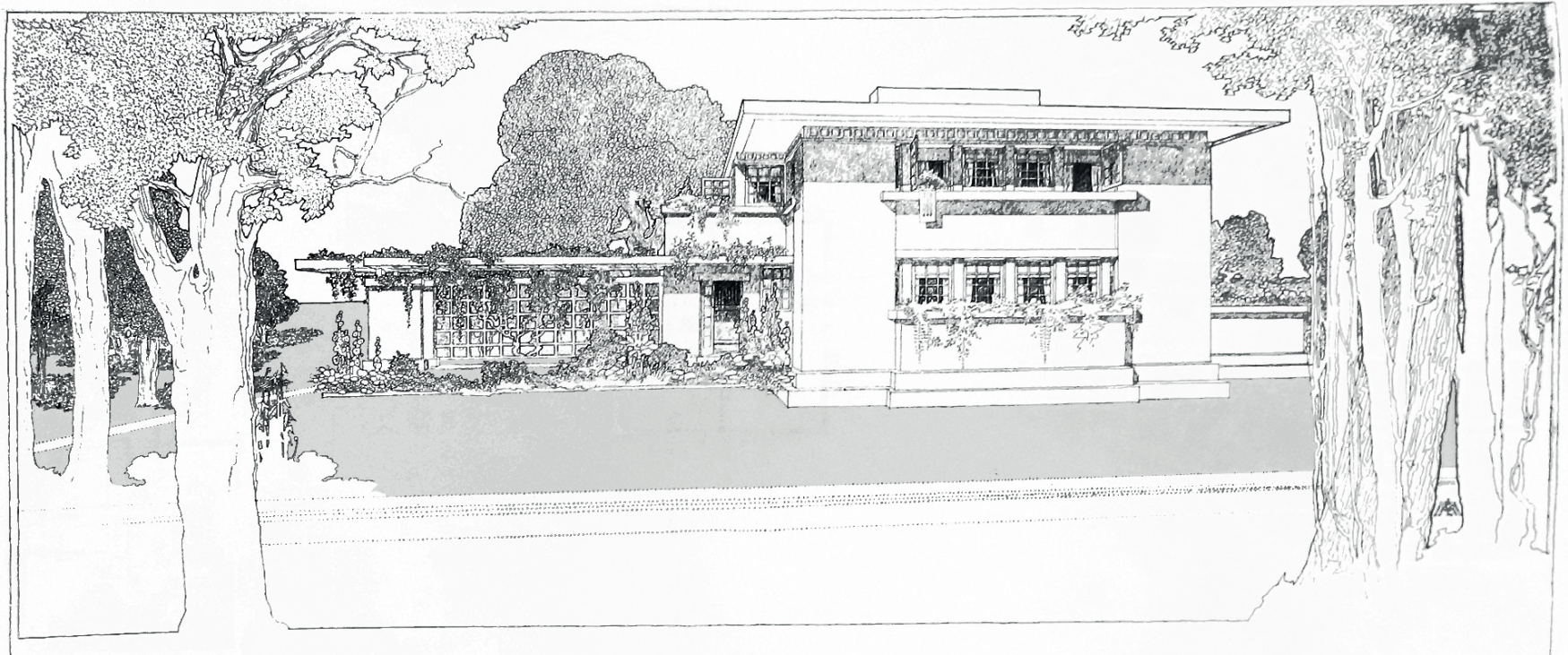


Sneider Warehouse . Engineer: Crawford  
1909



Walter Burley Griffin Patent Drawings  
Knit Lock House 1916



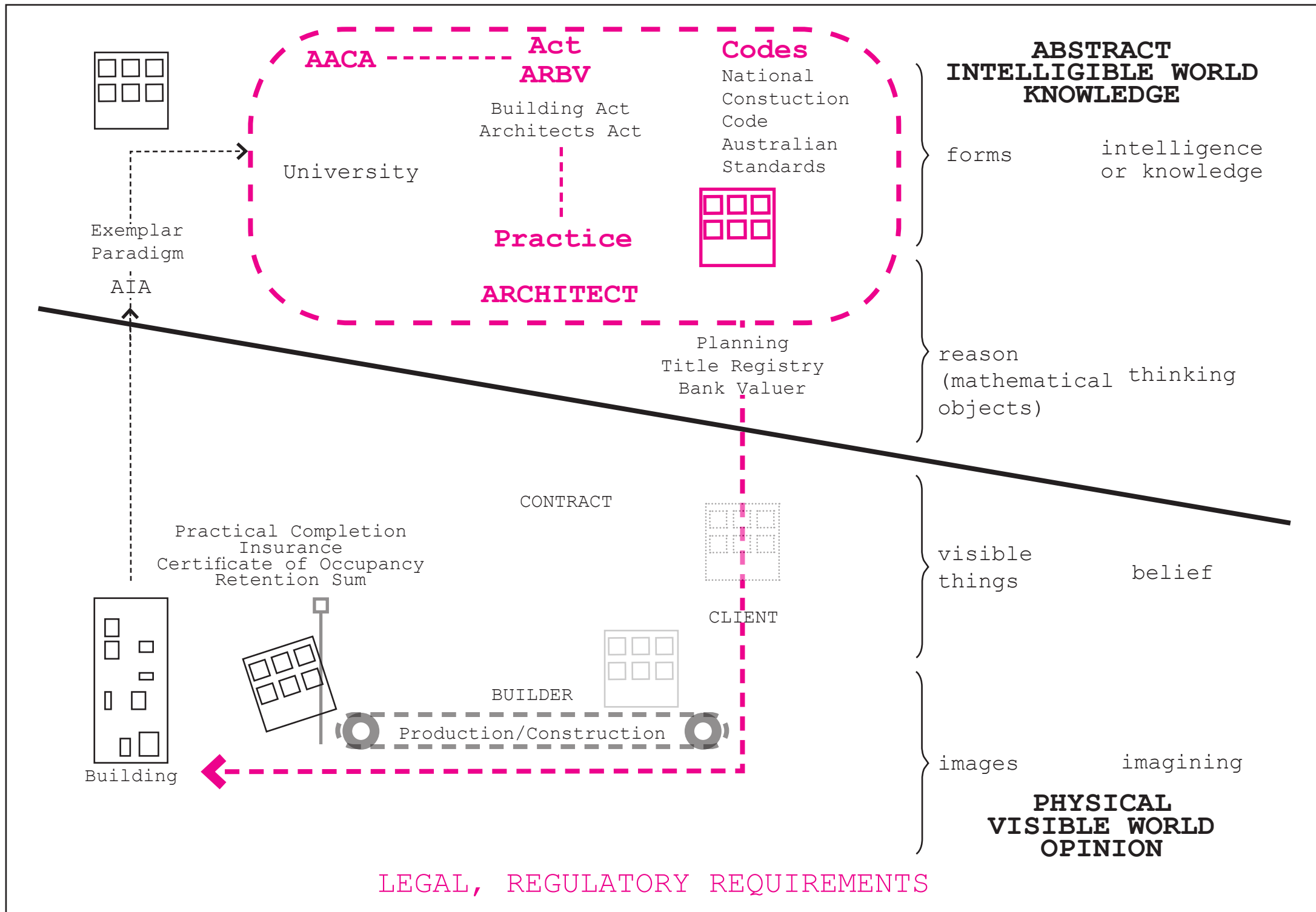


Walter Burley Griffin -  
The fire proof house 1909

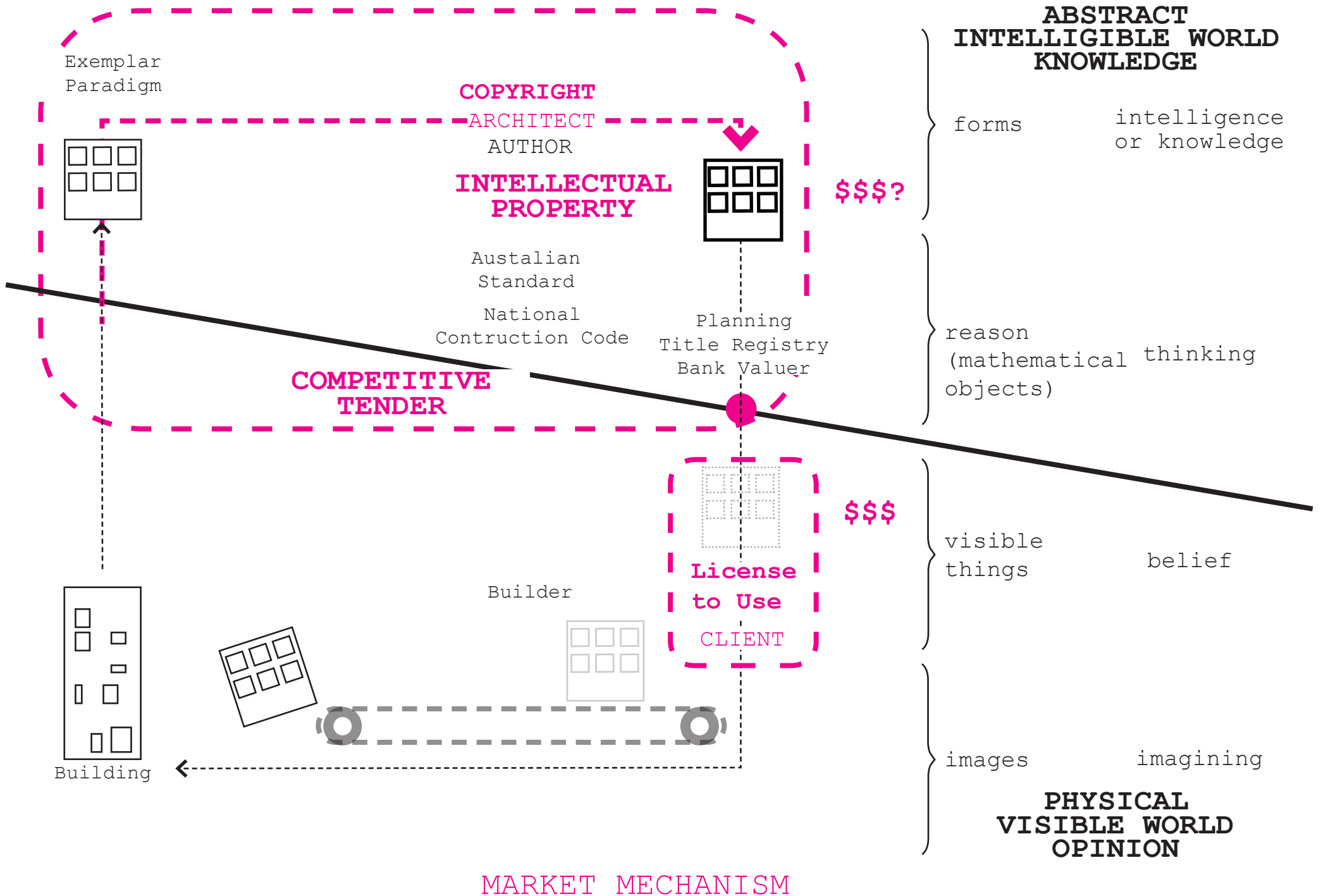




Monier Bridge 1903







## Authorised Version No. 034

## Architects Act 1991

No. 13 of 1991

Authorised Version incorporating amendments as at  
24 April 2012

The Parliament of Victoria enacts as follows:

## PART 1—PRELIMINARY

## 1 Purposes

The main purposes of the Act are:

- (a) to provide for the registration of architects;
- (b) to provide for the approval of partnerships and companies providing architectural services;
- (c) to regulate the professional conduct of architects;
- (d) to provide a procedure for handling complaints against architects;
- (e) to regulate the use of the terms "architect", "architectural services", "architectural design services" and "architectural design";
- (f) to establish the Architects Registration Board of Victoria.

S. 1(b)  
substituted by  
No. 35/2004  
s. 4(1).

S. 1(e)  
substituted by  
No. 35/2004  
s. 4(2).

(7) In this section *insurance* includes—

- (a) professional indemnity insurance;
- (b) an indemnity;
- (c) public liability insurance;
- (d) insurance taken out by any body or person which covers the work of the architect;
- (e) an agreement or instrument in the nature of an item set out in paragraphs (a) to (d).

Revised by Cluise Audio

Primary Role

Extracts from the Architects Act &amp; Regulations



## Schedule 1—Victorian Architects Code of Professional Conduct

Regulation 6

### Division 1—Architectural services

#### 1 Reasonable standards of conduct

In providing architectural services, an architect must—

- (a) **act honestly and with reasonable** care in the provision of services; and
- (b) comply with all applicable laws.

#### 2 Suitability to perform and knowledge of services

(1) An architect in charge of a client's project must—

- (a) **have suitable skills and experience** to be in charge of the project; and
- (b) **maintain a thorough knowledge** of the architectural services to be provided and of matters relating the performance of those services.

(2) An architect must provide architectural services with reasonable promptness according to time programs agreed with the client, or within a time that reasonably accords with the client's instructions.

#### 3 Approval of documents

- (1) An architect must not sign as checked, approved or supervised any drawings or other documents which the architect has not checked, approved or supervised.

Altruism  
Care of Others

Disciplinary  
Knowledge

Autonomy

#### 46 Powers and duties of Board

The Board may—

- (a) determine the qualifications and experience required for registration under this Act;
- (b) regulate the examination of persons applying for registration under this Act;
- (c) in association with the approved schools of architecture, assess and accredit courses in architecture;
- (d) hold examinations and appoint examiners;
- (e) issue or cancel certificates of registration or approval;

Authorised by the Chief Parliamentary Counsel

34

Higher Learning

## Conflicts of interest

Architects Regulations 2015  
S.R. No. 28/2015

Schedule 1—Victorian Architects Code of Professional Conduct

---

### 12 Conflicts of interest

- (1) An architect must not enter into an agreement with a person under clause 4 for the provision of architectural services if the agreement would result in an actual or **potential conflict between the** interests of—
  - (a) the architect and that person; or
  - (b) a current client and that person.

Must resign the contract

### 14 Withdrawal from the provision of services

An architect must **withdraw** from the provision of any architectural services to a client if the architect reasonably believes that the provision of those services would cause the architect to contravene the Act, the Regulations or this Code.

Architect can't misrepresent  
involvement in project

## Division 3—Architectural practice

### 15 Notification of qualifications and contact details

- (1) An architect must take all reasonable steps to ensure that the architect's qualifications, experience, awards, honours and authorship are stated accurately in all documents.
- (2) An architect must take all reasonable Bong & Ulitsen Audio steps to ensure that the architect's name and contact details are identified clearly and accurately on stationery, signboards, public notices and in publications.

Architect can't misrepresent  
involvement in project

Architects Regulations 2015  
S.R. No. 28/2015

Schedule 1—Victorian Architects Code of Professional Conduct

---

- (2) An architect must not permit the architect's name to be used in relation to any work, document or publication to falsely represent the architect's authorship of, responsibility for or agreement with the content or form of the work, document or publication.

Regulated

Extracts from the Architects Act & Regulations

Collective

Individual

To be consistent with  
other architects

#### 10 Qualifications for registration as an architect

A natural person is eligible to be registered as an architect if the person—

- (a) is of good character; and
- (b) has been engaged for not less than 2 years on practical architectural work and has attained a standard of professional practice satisfactory to the Board; and

#### Division 5—Duties to the public and the profession

##### 17 Duty to engender confidence and respect for the profession

An architect, by the architect's conduct, must endeavour to engender confidence in and respect for the profession of architecture.

##### 18 Duty to maintain standards and integrity of the profession

An architect, by the architect's conduct, must endeavour to maintain the standards and integrity of the profession of architecture.

Persona- Individual & Collective

Extracts from the Architects Act & Regulations

Public Trust

Public good of others

Architects Act 1991  
No. 13 of 1991  
Part 4—Disciplinary Proceedings

s. 26

---

**26 Tribunal may direct public inquiry**

- (1) The Tribunal may direct whether or not the whole or any specified part of an inquiry will be open to the public.

**Division 5—Duties to the public and the profession**

**17 Duty to engender confidence and respect for the profession**

An architect, by the architect's conduct, must endeavour to engender confidence in and respect for the profession of architecture.

**18 Duty to maintain standards and integrity of the profession**

An architect, by the architect's conduct, must endeavour to maintain the standards and integrity of the profession of architecture.

Altruism

Extracts from the Architects Act & Regulations

## 9 Unprofessional conduct

- (1) An architect who contravenes the Code is guilty of unprofessional conduct.
- (2) An architect who contravenes regulation 18(a) without reasonable excuse is guilty of unprofessional conduct.
- (3) An architect member of an approved partnership who contravenes regulation 18(b) without reasonable excuse is guilty of unprofessional conduct.
- (4) An architect director of an approved company who contravenes regulation 18(c) without reasonable excuse is guilty of unprofessional conduct.
- (5) Nothing in this regulation limits the meaning of unprofessional conduct.

## Division 4—Determinations of Tribunal

### 32 Grounds for disciplinary action against a registered architect

If after considering the submissions made at an inquiry the Tribunal finds that—

- (a) the architect is careless or incompetent in his or her practice; or
- (b) the professional standards of the architect are demonstrably lower than the standards which a competent architect should meet; or
- (c) the architect is guilty of unprofessional conduct; or
- (d) the architect has breached or failed to comply with any provision of this Act; or
- (e) the architect has been convicted in Victoria of an indictable offence or has been convicted of an offence which if committed in Victoria, would be an indictable offence; or

Regulated

Extracts from the Architects Act & Regulations





Home



My Network



Jobs



Messaging



Notifications



Me



For Business



Retry Premium for A\$0



Newcastle East End Stage 1 building by SJB // photo by Tom Roe

## The Architects Act // Update



**Adam Haddow**  
Architect



September 24, 2024

Late last week, the Institute met again with Government to discuss the progress of the Building Bill. This meeting provided us with an opportunity to reaffirm our position and to hear updates on the bill's drafting status. Importantly we are working with government in good faith to see if we can negotiate a bill that can be supported with the limited information available.

That said, I'm pleased to report that there has been a dedicated effort to incorporate our feedback and suggested improvements.

### Our Key Objectives Remain:

- **Upholding the Intent of 'Lift and Shift':** We aim to ensure that the merger of the Architects Act into the Building Bill honours the original intent, preserving essential components related to registration, moral obligations, and professional standards.
- **Maintaining Architectural Registration:** It is crucial that the registration of architects remains intact. Licensing is different.
- **Ensuring Professional Standards:** That professional standards across education, registration and continued professional development – carried out by independent bodies (currently the AACA and the NSW ARB), ensure a high level of consumer confidence in the Architectural profession and must be maintained.
- **Unrestricted Work:** Only Registered Architects should be afforded the opportunity of delivering unrestricted work. At the very core is consumer protection and the need to ensure that complex projects require a high level of design education and experience. Should other sectors of the construction industry want to deliver unrestricted work there is an existing alternate avenue for Architectural registration available through the ARB NSW.
- **Protecting Design Controls:** We support the retention of controls under SEPP65, which stipulate that only registered architects can design residential apartment buildings, defined as structures with three or more stories and four or more dwellings.
- **Renaming the Bill:** We propose changing the bill's title from the 'Building Bill' to the 'Built Environment Bill' to better capture the scope of the legislation.

We remain optimistic that the final drafting of the bill and the subsequent regulations will reflect our discussions. An industry reference group has

being tabled for consideration early next year. The Institute of Architects will actively participate, keeping us informed of developments.

In the weeks ahead we will be meeting with the minister responsible for the regulatory changes, Minister Anoulack Chanthivong, who among other things is the Minister for Building and Better Regulation. We look forward to discussing this with him further.

I remain of the belief that it is better for architects to be included in this bill rather than excluded. I am optimistic that, through the Institute's efforts, we can positively influence the bill's drafting and the accompanying regulations, with the aim of strengthening the profession, with the aim of enabling the delivery of improved built outcomes for our communities.

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💬 Comment

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**Carol Marra** · 2nd  
Director, Marra + Yeh Architects

5mo ...

[Adam Haddow](#) Thank you for the continued efforts and updates. Is there an opportunity for the broader professional community to input into or participate in these discussions?

Like · 🗨️ 3 | Reply · 1 Reply



**Adam Haddow** ✓ Author  
Architect

5mo ...

[Carol Marra](#) Of course. The institute is taking specific feedback from members of the profession via email and [Lisa King](#), [Michael Woodhams](#), [Elizabeth Carpenter](#) and me are taking phone calls discussing the changes with members directly. Additionally anyone can make a submission to the proposed changes. Check out ...more



**NSW DRAFT BUILDING BILL – Architects Act to be repealed - Australian Institute of...**  
The Minns Government has released the Building Commission NSW draft Building Bill for...

Like · 🗨️ 3 | Reply



**Sophie Solomon** · 2nd  
Principal Architect SSD studio FRAIA

5mo ...

Thankyou for the update, it is greatly appreciated.

I do understand that we want to be working with government rather than against them and it seems a foregone conclusion that "streamlining" is their preference. ...more

Like · 🗨️ 2 | Reply



**Dante Dela Cruz ACA** · 3rd+  
Registered Architect No. 6539 ARB-NSW and Registered Architect N...

5mo ...

Thank you Adam Haddow for this invaluable update...and keep up the good work!

Like | Reply



**Angelo Korsanos** ✓ · 2nd  
Director at Redshift AA + Lecturer of Practice in Architecture (WSU)

5mo ...

a good outcome for the industry and the relevant parties. ...more

Like | Reply



**Ken McBryde** • 2nd  
Architecture Design Director at Gensler

(edited) 5mo ...

Thank you so much for the Update [Adam Haddow](#) - quite some progress and excellent distinctions

Like | Reply



**Jessica b Watson** • 2nd  
Architectural Graduate + Textile Designer + Visual Art

5mo ...

Hi Adam,  
I have read many different opinions about this. Could you please explain why you 'remain of the belief that it is better for architects to be included in this bill rather than excluded'?

Like · 🗨️ 1 | Reply



**Paola Iglesias** • 2nd  
Senior Heritage Consultant, reg Architect, Design, Residential, Cafe...  
Follow to never miss an update.

5mo ...

Thankyou for the update

Like | Reply



**Jessica b Watson** • 2nd  
Architectural Graduate + Textile Designer + Visual Art

5mo ...

Your discussion with Elizabeth Farrelly was insightful. Thankyou.

Like | Reply



Dr Bree followed



**Luisa Drent** • 2nd  
Registered Architect and interior design | AVET Teacher | Proj...

Follow

5mo ...

Great summary and update.. much appreciated

Like | Reply

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